

SENATE No. 2720

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

SENATE, November 19, 2025.

The committee on Environment and Natural Resources, to whom was referred the petitions (accompanied by bill, Senate, No. 618) of Jason M. Lewis, Michael O. Moore, Michael D. Brady, James K. Hawkins and other members of the General Court for legislation to ban the retail sale of dogs, cats, rabbits, and guinea pigs in pet shops; (accompanied by bill, Senate, No. 650) of Patrick M. O'Connor, Michael O. Moore, Michael D. Brady, James K. Hawkins and other members of the General Court for legislation banning the retail sale of dogs, cats, and rabbits in pet shops; and (accompanied by bill, Senate, No. 651) of Patrick M. O'Connor, Michael O. Moore, Marcus S. Vaughn, Michael D. Brady and other members of the General Court for legislation to ban the retail sale of dogs, cats, and rabbits in new pet shops, report the accompanying bill (Senate, No. 2720).

For the committee,
Rebecca L. Rausch

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An Act banning the retail sale of dogs, cats, and rabbits in pet shops.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 39A of chapter 129 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting, in line 1, before the word “Every”, the
3 following letter:- (a).

4 SECTION 2. Said section 39A, as so appearing, is hereby further amended by striking
5 out, in line 13, the word “section”, and inserting in place thereof the following word:- subsection.

6 SECTION 3. Said section 39A, as so appearing, is hereby further amended by inserting
7 after subsection (a) the following 4 subsections:-

8 (b) No person engaged in the business of operating a pet shop for which a license must be
9 obtained pursuant to subsection (a) shall sell or offer for sale a dog, cat, or rabbit.

10 (c) Subsection (b) shall not be construed to prohibit a pet shop from offering space to an
11 animal rescue or shelter organization to showcase dogs, cats, or rabbits for adoption; provided,

however, that the pet shop shall not have an ownership interest in the animals offered for adoption.

(d) Nothing in subsections (b) or (c) shall affect the authority of any town, city, or other locality to regulate or prohibit the sale of dogs, cats, or rabbits consistent with this section.

(e) Notwithstanding the provisions of section 43 of this chapter, a person who violates subsection (b) of this section shall be: (i) assessed a civil penalty of not more than \$1,000 for the first offense, not more than \$2,500 for the second offense, and not more than \$5,000 for third and subsequent offenses; and (ii) subject to suspension or revocation of the person's pet shop license. Each advertisement or offer for sale or actual sale of an animal in violation of subsection (b) shall constitute a separate violation.

SECTION 4. This act shall take effect 90 days after its passage.